

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.1156 of 2016

Miah Amzad Hossain and others

----- Defendant-Petitioners

=Versus=

Khorshed Ali Chowdhury and others

----- Plaintiff-Opposite Parties

Mr. Mansurul Haque Chowdhury, with

Mr. Md. Rabiul Alam Chowdhury, Advocate

----- For the Petitioners

Mr. Kamruzzaman Mollah, Advocate

-----For the Opposite Party Nos.1-8

Mr. Enayet Hossain Khan, Advocate

----- For the Opposite Party Nos. 9-18

Heard on 11.05.2017, 16.05.2017 and

Judgment on 29.05.2017

At the instance of the present-defendant-petitioners, Miah Amzad Hossain and others, Leave was granted and this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 24.01.2016 passed by the learned Additional District Judge, 6th Court, Dhaka in Civil Revision No.95 of 2013 affirming the judgment and order dated 09.06.2013 passed by the learned Senior Assistant Judge, 1st court, Dhaka in Title Execution Case No.32 of 1962 rejecting two petitions of the petitioners dated 04.06.2013 should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the predecessor of the present-opposite parties, Mvi. Mohammad Ali Chowdhury and others, as the plaintiffs filed the Title Suit No.152 of 1957 in the court of the then learned Munsif, at present the learned Assistant Judge, court No.3, Dhaka for declaration of title and khas possession of the suit land appertaining to C.S. Khatian No.147, C.S. Dag No.67, Mouza Dhanmondi, Police Station-Lalbagh, Dhaka for the land measuring .50 acres. The plaint contains that one Debraj Pal was the sole owner and possessor of the above mentioned land, who sold the said land to the present-plaintiff-opposite parties by the registered deed dated 21.05.1953 but they got an information that the present-defendant-petitioners trespassed into the land and they dispossessed them which they cannot do lawfully and as such, filed the instant suit.

The defendant Nos.8-9 contested the suit by filing a written statement contending, inter-alia that Debraj has no right, title and interest in the suit land because the land was in khas possession of Mirja Abdul Kader, who settled the case land in the name of Abani Mohan Roy sometime after 1940 and he sold the case land to the defendants on 26.10.1956 thereby in course of time the land was owned by the defendants. It is also contended that no notice was served upon the defendant No.3 of the said Title Suit No.152 of 1957 as the plaint did not describe the proper address of the defendant No.3, who was the predecessor of the present-petitioners.

After hearing the contesting parties, the learned Assistant Judge decreed the suit on 28.05.1960. The decree-holder in the said suit thereafter filed the Title Execution Case No.32 of 1962 but the decree on execution being the Title Execution Case No.32 of 1962 could not be concluded yet because of a huge number of litigations filed on behalf of the present-petitioners, therefore, it is still pending.

When the said execution case has been pending the present-defendant-petitioners filed an application on 04.06.2013 under Section 151 of the Code of Civil Procedure praying for exclusion of the land measuring 5 khatas of land from the decreed land. On the same day, the present-petitioners have also filed an application under Order 39, Rule 7 read with Section 151 of the Code of Civil Procedure for local inspection in the decreed land.

After hearing both the parties, the executing court being the learned Assistant Judge, 1st court, Dhaka rejected both the applications by the impugned judgment and order dated 09.06.2013. Being aggrieved the present-petitioners filed the Civil Revision No.95 of 2013 in the court of the learned District Judge, Dhaka which was heard by the learned Additional District Judge, 6th court, Dhaka on transfer who after hearing the parties disallowed the revision by his judgment and order dated 24.01.2016. This revisional application has been filed under Section 115(4) of the Code of Civil Procedure challenging the legality of the said impugned judgment and order and the present Rule has been issued thereupon.

Mr. Md. Rabiul Alam Chowdhury, the learned Advocate appearing for the present-petitioners submits that the predecessors of the present-petitioner, Abdul Gani Miah was made a party as the defendant No.3 in the said Title Suit No.152 of 1957 with incorrect name and address and as such, no notice was served and no opportunities have been given to contest the suit, therefore, the decree obtained by practicing fraud as such, both the courts below committed an error of law by rejecting the applications which caused error of law occasioning failure of justice, thus, the Rule should be made absolute.

The learned Advocate further submits that the present-petitioners as the legal successors of the said defendant No.3 Abdul Gani Miah and thereafter successor of Mrs. Begum Sofia Khanom had file a fresh case being Title Suit No.206 of 1990 renumbered as Title Suit No.64 of 1993 which was decreed ex-parte on 05.08.1995 containing that the decree passed in Title Suit No.152 of 1957 was not binding upon them within frame work of law but the learned trial court misconstrued and misread the law and evidence thus rejected the applications which was also non-considered by the revisional court below therefore came to a wrongful conclusion to disallow the revision which is liable to be set aside.

Mr. Mansurul Haque Chowdhury, the learned Advocate also appearing for the petitioners submits that the decree obtained by the present-plaintiff-opposite parties in Title Suit No.152 of 1957 by practicing fraud, therefore, the validity and legality of the decree has been vitiated as such, the decree obtained in Title Suit No.64 of 1993

remains to be operative but the learned courts below failed to apply their judicial mind, therefore, came to a wrongful conclusion.

The Rule has been opposed by the opposite party Nos.1-8 and also opposite party Nos.9-18 by filing a counter-affidavit contending, inter-alia, that the present-petitioners were the judgment-debtors in the Title Suit No.152 of 1957 but with an ulterior motive the petitioners filed two applications in the Title Execution Case No.32 of 1962 in order to delay the execution proceedings and to cause suffering to the present-plaintiff-opposite parties. Therefore, the learned trial court and also the revisional court below came to a lawful conclusion to reject those applications as the said Mr. M.A. Gani the predecessor of the present-petitioners was adequately made a party in the suit and the suit was decreed against him on contest. Therefore, there was no fraud practiced in obtaining the decree in the Title Suit No.152 of 1952. It is also contended that some of the defendants challenged the decree dated 05.06.1960 by filing an appeal being Title Appeal No.245 of 1960 which was dismissed on 27.03.1962. Thereafter, the predecessor of the present-petitioners filed the 2nd Appeal in this High Court Division being No.478 of 1966 which was also disallowed on 03.05.1977. The Civil Petition for Leave to Appeal No.220 of 1975 was filed in the Appellate Division of the Supreme Court of Bangladesh which was dismissed and a Review Petition No. 01 of 1998 was also dismissed by our Apex Court. Therefore, our Appex Court has already uphold the decree in Title Suit No.152 of 1957 passed on 28.05.1960 but the present petitioners filed

two applications mentioned above in order to exclude 5 kathas from the decreetal land unlawfully and with an ulterior motive.

Mr. Enayet Hossain Khan, the learned Advocate appearing for the opposite party Nos.9-18, submits that the learned trial court after considering the evidence adduced and produced by the parties came to a lawful conclusion to reject the applications for local inspection as well as exclusion of land from the decree and the revisional court also concurrently found that the two applications have no legal basis as prayed for therefore, came to a lawful conclusion to reject the applications in order to go ahead with a execution proceeding as the executing court does not have any legal authority to go beyond the terms of the decree passed almost 60 years back but the Rule has been obtained by the present petitioners by misleading this Court, therefore, no interference from this Court is called for.

The learned Advocate also submits that neither the predecessor of the petitioners nor the petitioners themselves had accrued any right in the property by obtaining an exparte decree in Title Suit No.64 of 1993 as the Code of Civil Procedure contains a bar upon 3rd party to have any remedy in an execution case as such, the claim of an oral gift in favour of the mother of the present petitioners, Begum Sofia Khanom, is neither a judgment-debtor nor a judgment-creditor, therefore, the said proceeding is a fraudulent which cannot vitiate the said execution proceeding.

Mr. Kamruzzaman Mollah, the learned Advocate appearing for the opposite party Nos.1-8 submits that the predecessor of the present-petitioners was a party in Title Suit No.152 of 1957 who contested the suit and the decree was passed against him but while the execution case has been proceeding the said predecessor of the petitioner name Abdul Gani Miah transferred the claim land measuring 5 kathas in favour of his mother Begum Sofia Khanom by way of an oral gift without any specific date, therefore, the gift and the mutation thereof in her name have no legality and the Title Suit No.64 of 1993 by her is not a valid proceeding from such a transaction, therefore, the said Title Suit No.64 of 1993 is barred by lispendency, therefore, he prayed to discharge the Rule.

Considering the above submissions made by the learned Advocates of the respective parties and also considering the revisional application filed under Section 115(4) of the Code of Civil Procedure along with the huge volumes of Annexures therein and the supplementary-affidavit filed by the present-petitioners as well as the Counter-affidavit filed by the present-opposite parties, it appears to me that the predecessor of the present-opposite parties as the plaintiffs filed the Title Suit No.152 of 1957 for declaration of title and khas possession upon the suit land described in the schedule-B of the plaint. In the said suit as many as 9 defendants were impleaded including the predecessor of the present-petitioners Abdul Gani Miah as the defendant no.3, who contested the suit by filing a written statement as it appears from the judgment of the said suit passed on 28.05.1960. The other defendants

preferred an appeal impugning the said judgment which was dismissed by the court concerned thereafter, the 2nd Appeal preferred by the present-petitioners and the contesting parties being Title Appeal No.478 of 1966 which was dismissed by this Court and the Civil Petition for Leave to Appeal No. 220 of 1978 was disallowed and a Review Petition thereof was also rejected. The predecessor of the present-petitioners Begum Sofia Khanom filed the Title Suit No. 64 of 1993 (earlier Title Suit No. 206 of 1990) which was decreed ex-parte after examining the document submitted in this revisional application. I could not find any valid document to show the transfer of the land by Abdul Gani Miah in favour of Begum Sofia Khanom, the predecessor of the present-petitioners.

The learned Advocate appearing for the petitioners submits that it was an oral document but the land was mutated in her name through the mutation case. I found no evidence that an entitlement on behalf of the said Begum Sofia Khanom, the predecessor of the petitioners, who claimed to have obtained the title by way of an oral Heba from her husband Abdul Gani Miah who seemed to have failed to prove his entitlement in the suit being Title Suit No.152 of 1957. It transpires to me that the said Abdul Gani Miah who took all legal measure means for ensuring his title in the said suit land by challenging the decree in the said suit instead of taking any legal measure against the said decree passed on 28.06.1960 but he transferred the land in favour of Begum Sofia Khanom.

Regarding 8½ decimals of land in Title Suit filed by the said Begum Sofia Khanom in the year 1990 challenging the decree passed in the year 1960 which is certainly beyond the stipulated time under the provisions of the Limitation Act. Moreover, the exparte decree passed in Title Suit No.64 of 1993 is also a questionable decree which cannot establish any right in favour of a person from a transferor who failed to prove his right earlier therefore, Title Suit No.64 of 1993 cannot create any right. Accordingly, the successors of the said Begom Sofia Khanom who filed two applications in the pending Title Execution Case No.32 of 1962 for local inspection and for exclusion of the claimed land measuring 8½ decimals equivalent to 5 kathas from the decreetal land in the Title Suit No.152 of 1957 are not sustainable under law. I have been benefited by perusing those two applications annexed with the present revisional application and after examining the legality and the practiced aspect for their two applications, I am not satisfied that these two applications need any consideration for the purpose of which this applications were made. Accordingly, the present-petitioners are not entitled to get any remedy by filing the applications in a pending execution case after a long period of time which cannot provide any remedy for the petitioners.

Now I am inclined to consider and examine the judgment and decree passed by the learned courts below. The learned trial court being the learned Assistant Judge, Ist court, Dhaka by his judgment and order

dated 09.06.2013 lawfully rejected the applications filed by the present-petitioners on the basis of the following decision:-

“মোকাদ্দমার সমগ্র নথি, দাখিলী দরখাস্ত উভয়পক্ষের বিজ্ঞ কৌশলীর বক্তব্যসহ নথী পর্যালোচনা করলাম। প্রতীয়মান হয় যে, দেঃ ১৫২/১৯৫৭ নং মোকাদ্দমা হতে উদ্ভূত ইহা একটি দীর্ঘদি-নর পুরা-না ডিএলজারী মামলা। দেঃ ১৫২/১৯৫৭ নং মোকাদ্দমায় প্রচারিত ডিক্রিতে উল্লেখ আছে যে The pleader commissioners report, field book, map etc. do from part of decree.” অর্থাৎ মূল মোকাদ্দমা চলমান অবস্থায় কমিশন কার্যক্রম সম্পাদিত হ-য়ছিল যা ডিক্রির অংশ বি-শষ হিসা-ব সংযুক্ত আ-ছ। অধিকন্তু দেওয়ানী কার্যবিধি আই-নর আ-দশ ৩৯ বিধি ৭ এ উ-ল্লিখিত বিধি বিধান শুধুমাত্র মোকাদ্দমার (suit) ক্ষে-এ প্র-যাজ্য। ইহা একটি ডিক্রিজারী (Execution case) মামলা যা বিবিধ (Miscellaneous) প্রকৃতির দরখাস্ত হিসা-ব পরিগণিত হয়। বিধায় দেওয়ানী কার্যবিধি আই-নর আ-দশ ৩৯ বিধি ৭ এ উ-ল্লিখিত বিধি বিধান অএ মামলার ক্ষে-এ প্র-যাজ্য নয় ব-ল অএাদাল-তর নিকট প্রতীয়মান হ-য়-ছ। অধিকন্তু আনীত উভয় দরখাস্ত ডিক্রিজারী মামলার কার্যক্রম-ক অনর্থক বিলম্বিত করার প্রয়াস। সে-হতু তৃতীয় পক্ষ/দরখাস্তকারী ও দায়িকপক্ষ কর্তৃক (Local Inspection) প্রার্থনায় আনীত উভয় দরখাস্ত নামনজুর করা হল।”

The revisional court below concurrently found these two applications merit no further consideration and came to a lawful decision on the basis of the following finding:-

“The Specific Relief Act 1877 এর ৩৯ ধারার বিধান মোতা-বক রিভিশনকারী তর্কিত দেওয়ানী ১৫২/১৯৫৭ নং মোকাদ্দমায় তারা পক্ষ থাকায় তারা ডিএল পুরা বা আংশিক বাতিল না চে-য় তা তা-দর উপর বাধ্যকর নয় ম-র্ম ঘোষণা পে-ত পা-রন না। যে-হতু দেওয়ানী ১৫২/১৯৫৭ নং মামলার বাদীপক্ষ কর্তৃক উপস্থাপিত সাক্ষ্য ও তার ভিত্তি-ত বিচার আদাল-তর সিদ্ধান্ত মহামান্য আপীল বিভাগ পর্যন্ত বহাল র-য়-ছ এবং যে-হতু রিভিশনকারীপক্ষ তা-দর উপর সমন নোটিশ জারী বিষ-য় প্রতারণার কোন অভি-যোগ ক-রননি, সে-হতু দেওয়ানী ৬৪/১৯৯৩ নং মোকাদ্দমার তারা দেওয়ানী ১৫২/১৯৫৭ নং মোকাদ্দমার রায়-

ডিগ্রি তা-দর ৫ কাঠা জমির সংশ্ল-ব বাধ্যকর নয় ম-র্ম যে ঘোষণা লাভ করে-ছেন, তা আইনতঃ রক্ষণীয় নয়। অধিকন্তু এটি একটি একটি অন্তঃসার শূন্য ডিগ্রী, কারণ দেওয়ানী ১৫২/১৯৫৭ নং মোকাদ্দমার রায়-ডিগ্রী অক্ষত রে-খ দেওয়ানী ৬৪/১৯৯৩ নং মোকাদ্দমার ডিগ্রী কার্যকরের সুযোগ -নই। রিভিশনকারীর বিজ্ঞ আইনজীবী শুনানীকাল নি-বদন ক-রন যে, যে-হতু তারা দেওয়ানী ১৫২/১৯৫৭ মোকাদ্দমার পুরো ০.৫০ একর জমি দাবী করেন না এবং তাদের দাবী কেবল মাএ ০.৮২৫ একর, সে-হতু তারা পু-রা রায়-ডিগ্রী বাতীল চাওয়া সমীচিন ম-ন ক-রন নি। রিভিশনকারী প-ক্ষর এই নি-বদন গ্রহণ কর-ত আমি অপারগ, কারণ সিভিল প্রসিডিউর কোড এর অর্ডার ৯, রুল ১৩ মোতা-বক কিংলা একতরপা ডিগ্রীর বিরুদ্ধে আপীল কিংবা নতুন মামলায় তর্কিত একতরফা ডিগ্রী আংশিক রদ-রহিত ফ্র-ম পরিমার্জন করার সু-যোগ আ-ছ।

রিভিশনকারীপক্ষ ডিগ্রীজারীর আদাল-ত এ-স দেওয়ানী ৬৪/১৯৯৩ নং মামলার ডিগ্রী মোতা-বক তা-দর ৫ কাঠা জমি বাদ দি-য় বাকী অংশের উপর কার্যক্রম পরিচালনা ও উক্ত ৫ কাঠা জমি চিহ্নিত ক-র বাদ দেওয়ার জন্য স্থানীয় পরিদর্শ-নর প্রার্থনা ক-রন। এটি আই-নর প্রতিষ্ঠিত নীতি যে, ডিগ্রীজারী আদালত ডিগ্রীর বাই-র যে-ত পা-রন না এবং মূল মামলার ডিগ্রীর পরিবর্তন না হ-ল জারী কারী আদালত ডিগ্রীজারী কার্যক্রম ভিন্নর-প পরিচালনার আ-দশ দি-ত পা-রন না। এই মামলায় রিভিশনকারী পক্ষ তৃতীয় পক্ষ দরখাস্তকারী হি-স-ব আস-ল ও প্রস্তুত প-ক্ষ তারা দায়িক। দেওয়ানী ৬৪/১৯৯৩ নং মামলায় দেওয়ানী ১৫২/১৯৫৭ নং মামলায় ডিগ্রী পু-রা বা আংশিক রদ-রহিত হ-ল জারী পর্যা-য় এ-স তারা সং-শাধিত ডিগ্রী মোতা-বক জারী কার্যক্রম পরিচালনার প্রার্থনা কর-ত পার-তন। কিন্তু যেহেতু দেওয়ানী ১৫২/১৯৫৭ নং মোকাদ্দমার ডিগ্রী অক্ষত আ-ছ, সে-হতু ডিগ্রীজারী আদাল-তর এই ডিগ্রী-ত হস্ত-ক্ষপ করার এখতিয়ার নেই।”

In view of the above discussions and consideration of findings of both the courts below, in particular, the revisional court below, I am of the opinion that the learned courts below committed no error of law by passing the impugned judgment and order dated 24.01.2016, I am, therefore, not inclined to interfere into the impugned judgment and order passed by the revisional court below.

Accordingly, I do not find merit in the Rule and the Leave granting order.

In the result, the Rule is discharged and the Leave granting order is recalled and dismissed.

The interim order of stay granted at the time of issuance of the Rule upon all further proceedings of Title Execution Case No.32 of 1962 pending in the court of learned Senior Assistant Judge, 1st court, Dhaka is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the concerned court immediately.